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PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

GOVERNMENT OF WEST BENGAL
Department of Panchayats & Rural Development
Panchayat Wing, Jessop Building, (1st Floor)
63, Netaji Subhas Road, Kolkata – 700 001

NOTIFICATION

No. 5086/PN/O/I/3R-2/2012 dated 01.10.2012. Whereas the following draft of amendments to amend the West Bengal *Panchayat* (Constitution) Rules, 1975 (hereinafter referred to as the said rules) was published as required under sub-section (1) of section 224 of the West Bengal *Panchayat* Act, 1973 (West Ben. Act XLI of 1973) (hereinafter referred to as the said Act) vide Notification No. 4714/PN/O/I/3R-2/2012 dated 05.09.2012, in the *Kolkata Gazette, Extraordinary* dated September 5, 2012, inviting objection and suggestions from all persons likely to be affected thereby, within fifteen days from the date of its publication;

AND WHEREAS, no objection and suggestion has been received by this Department during the period of fifteen days.

NOW, THEREFORE, in exercise of power conferred by sub-section (1) of section 224 of the said Act, the Governor has been pleased hereby to make the following amendments in the said rules:—

Amendments

In the said rules,—

(1) for CHAPTER 1A, *substitute* the following CHAPTER:—

“CHAPTER 1A

Reservation of offices of chairpersons

2A. Reservation of offices at *Gram Panchayat* and *Panchayat Samiti*.—(1) As soon as may be, but not later than six weeks before the date of poll appointed for any general election, the District Magistrate and District *Panchayat* Election Officer, shall, by an order in Form 1B, after previous publication of the draft of the order in Form 1A not later than nine weeks before the date of poll, determine, subject to such direction as may be issued by the Commission in this behalf, from among the total number of the offices of —

- (i) the *Pradhan*,
- (ii) the *Upa-Pradhan*,
- (iii) the *Sabhapati*, and
- (iv) the *Sahakari Sabhapati*

in a district, such number of offices reserved for—

- (a) the Scheduled Castes, the Scheduled Tribes and the Backward Classes as shall bear, as nearly as may be, the same proportion to the total number of the offices of the *Pradhan*, the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be, in the district as the population of the Scheduled Castes or the Scheduled Tribes or the Backward Classes, as the case may be, in the Blocks within the district, bears with the total population in the Blocks:

Provided that for the purpose of determination of offices of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be, to be reserved under this clause for aforesaid categories of persons, the provisions under sub-section (1) of section 9 and sub-section (1) of section 98 of the Act shall be taken into consideration:

Provided further that while determining the ceiling limit of fifty per cent of the total number of offices of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be, only the whole integers shall be taken into consideration, ignoring any figure after the decimal point:

Provided also that when the number of offices of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be, determined for the Scheduled Castes and the Scheduled Tribes in terms of the prescribed manner reaches one-half of the total number of offices of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be, in a District, there shall be no reservation for the Backward Classes persons:

Provided also that when the total number of reserved offices for the Scheduled Castes and the Scheduled Tribes persons, taken together, exceeds fifty per cent of the total number of offices of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be, the number of offices for each category shall be reduced in the proportion of the population of the Scheduled Castes and the Scheduled Tribes to the total population in that District in order to match the figure of one-half of the total number of offices of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be, in that District, in which case also there shall be no reservation for the Backward Classes persons:

Provided also that when the total number of reserved offices for the Scheduled Castes and the Scheduled Tribes and the Backward Classes persons in terms of the provisions of this clause exceeds one-half of the total number of offices of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be, in that District, the number of offices reserved for the Scheduled Castes and the Scheduled Tribes shall remain unaltered and the number of offices determined for the Backward Classes persons shall be suitably reduced to match the figure of one-half of the total number of offices of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be:

Provided also that when the number of reserved offices of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be, determined for the Scheduled Castes and the Scheduled Tribes persons taken together is less than one-half of

the total number of offices of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be, in that District, the available balance number of offices of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati*, as the case may be, shall be reserved for the Backward Classes persons in conformity with the per centage of their population to the total population in that District within the limit of fifty per cent of the total number of offices in that District,

Explanation I:— For the purpose of determination of number of offices to be reserved for the Scheduled Castes, the Scheduled Tribes and the Backward Classes under clause (a), all figures for calculation shall be taken up to the second place of decimal ignoring any digit after the second place of decimal altogether.

Explanation II:— For the final stage of calculation for arriving at the number of offices to be reserved, the digit in the second place of decimal, if any, shall be totally ignored, and the whole number in the figure obtained shall be raised by one if the digit at the first place of decimal is not less than five while ignoring any digit below five at the first place of decimal.

(b) women as shall constitute—

- (i) as nearly as practicable one-half but not exceeding one-half of the offices reserved under clause (a), and
- (ii) as nearly as practicable one-half but not exceeding one-half of the total number of offices of the *Pradhan*, *Upa-Pradhan*, *Sabhapati* or *Sahakari Sabhapati*, as the case may be, in the district including the offices reserved under sub-clause (i).

Explanation.— For the purpose of determination of number of offices to be reserved under clause (b), while calculating the one-half of the figure, only the whole integers shall be taken into account, ignoring any figure after the decimal point.

(2) The District Magistrate and District *Panchayat* Election Officer shall, subject to such direction as may be issued by the Commission, by an order in Form 1 B, after previous publication of the draft of the order in Form 1 A, declare from among the offices of the—

- (i) *Pradhan*,
- (ii) *Upa-Pradhan*,
- (iii) *Sabhapati*, and
- (iv) *Sahakari Sabhapati*

in a district,—

- (a) such offices to be reserved, by rotation, for the Scheduled Castes, the Scheduled Tribes and the Backward Classes, as may be necessary to match the number determined under clause (a) of sub-rule (1) :

Provided that—

- (i) the District Magistrate and District *Panchayat* Election Officer shall assign consecutive serial numbers to all the *Grams* and separately to all the *Pranchayat Samitis* in a district following, as far as practicable, the sequence of the numbers assigned to the Legislative Assembly constituencies and, if necessary, the numbers assigned to the Legislative Assembly polling stations within any such constituency comprising any part of the district;

- (ii) for the purpose of reservation under clause (a) of sub-rule (1), subject to the provisions under item (vii), such *Grams* and such Blocks as may have the Scheduled Castes or the Scheduled Tribes or the Backward Classes population constituting more than five per cent of the total population of that *Gram* or that Block, as the case may be, shall be taken into consideration ;
- (iii) on assignment of numbers referred to in item (i), the *Grams* or the Blocks coming into the zone of consideration in terms of item (ii) shall be arranged in ascending order of serial numbers and formed into groups of fifty *Grams* or Blocks of consecutive serial numbers with a part group, where necessary, consisting of any additional number of *Grams* or Blocks ;
- (iv) for the purpose of reservation, the number of offices to be reserved shall be apportioned to different groups in the following manner :—
 - (a) if the total number of *Grams* or Blocks referred to in item (iii) is divisible by fifty, the number determined under clause (a) of sub-rule (1) shall be apportioned, as far as practicable, equally among such groups of fifty and, in the case of remainder, the number so apportioned shall be raised by one in as many groups as may be necessary, beginning from the first group having the lowest serial number, or
 - (b) if the total number referred to in item (iii) is not divisible by fifty, the number determined in terms of clause (a) of sub-rule (1) shall be notionally apportioned to each sub-group of ten offices among such total offices, raising the total number of such sub-groups by one, if the last digit in the total number is five or more, while ignoring any digit less than five; apportionment to each group of fifty *Grams* or Blocks shall, then, be made of the number arrived at by multiplying the number notionally assigned to a sub-group which may be whole number, or a decimal number taken up to second place of decimal, by five, and in the case of part group of less than fifty, the number apportioned shall be the number for the sub-group multiplied by the number of sub-group deemed to be comprised in the part group ; in the case of remainder, initially apportioned number shall be raised by one in as many groups as may be necessary, beginning from the first group commencing from the lowest serial number, or
 - (c) if the total number referred to in item (iii) is less than fifty, the number determined in terms of clause (a) of sub rule (1) shall be apportioned to the group comprising all *Gram* or Blocks, as the case may be.

Explanations :

- (1) For the purpose of calculations, figures upto second place of decimal shall be taken into account and, at the last stage, for determining the number of offices to be reserved from each group, the decimal number, if any, shall be rounded off to a whole number on raising it by one if the digits in the first place of decimal is five or more while ignoring such digit if it is less than five making such adjustments as may be necessary to adhere to the required number.
- (2) Notwithstanding anything in this rule, the number of offices to be reserved shall be apportioned, as far as practicable, equally among the available groups of fifty with appropriate apportionment to the part group consisting of less than fifty or to the groups of ten, where necessary, of *Grams* or Blocks, as the case may be ; for this purpose, the number initially calculated for apportionment to a group of fifty or ten as the case may be, may be marginally increased or reduced, as far as practicable, in order to apportion the required number equally among the groups available on each occasion ;

- (v) reservation by rotation of the offices, determined under clause (a) of sub-rule (1) for every two consecutive terms, shall be made in accordance with the roster as specified in column (1) or column (2) of Schedule I for reservation of the offices of the *Pradhan* or the *Sabhapati* and in column (3) or column (4) of the said Schedule for reservation of the offices of the *Upa-Pradhan* or the *Sahakari Sabhapati* in the following manner:
- (a) the roster shall be applied separately for every group of fifty or ten *Grams* or *Blocks*, as the case may be, or for the part group having less than fifty *Grams* or *Blocks* and, for this purpose, another set of consecutive serial numbers, commencing from figure one, shall be given to them, where necessary, so that reservation may be made on matching such consecutive serial numbers with the identical numbers in the roster, and
 - (b) reservation of the offices shall be made when the serial number assigned to a *Gram* or a *Block*, as the case may be, matches the number obtained in the roster and, for this purpose, the roster shall be taken up from the beginning and followed in sequential order reserving such offices as match the numbers in the roster on ignoring the unmatched numbers until the required number is reached;
- (vi) If following the principle of rotation, any office is selected in any term of election simultaneously for reservation for the Scheduled Tribes, the Scheduled Castes and the Backward Classes persons or any two of such categories, such office shall be reserved in the preferential order of the Scheduled Tribes, the Scheduled Castes and the Backward Classes and reservation for the left out Scheduled Castes or Backward Classes or both, as the case may be, shall be made out of the offices coming next in order:
- Provided that the office so reserved for the Scheduled Tribes or the Scheduled Castes on the aforesaid ground shall be eligible for consideration for reservation for the Scheduled Castes or the Backward Classes, as the case may be, in the next term of election.
- (vii) if, in a district, the number of the *Grams* or the *Blocks* available for reservation by rotation, falls short of the number determined under clause (a) of sub-rule (1), the Commission may, by order, include, for the purpose of reservation, such other offices relating to the *Grams* or the *Blocks*, as the case may be, as have the Scheduled Castes or the Scheduled Tribes or the Backward Classes population, as the case may be, constituting not more than five per cent of the total population in that *Gram* or that *Block*, as the case may be, to match the number of the offices required for reservation, and such inclusion shall commence from the *Gram* or the *Block* having higher proportion of the Scheduled Castes or the Scheduled Tribes or the Backward Classes population, as the case may be ;
- (b) such offices to be reserved, by rotation, for women as may be necessary to match the number determined under sub-clause (i) and sub-clause (ii) of clause (b) of sub-rule (1) :

Provided that such declaration of offices shall be made at first in respect of the offices determined under sub-clause (i) of clause (b) of sub-rule (1), and then in respect of the offices determined under sub-clause (ii) of clause (b) of sub-rule (1) :

Provided further that the total number of offices reserved for the Scheduled Castes, the Scheduled Tribes and the Backward Classes shall be taken into account while determining the number of offices to be reserved for women among them:

Provided also that such declaration shall be made in accordance with the roster as specified in—

- (i) Schedule A for the offices of the *Pradhan* and the *Sabhapati*, and
- (ii) Schedule B for the offices of the *Upa-Pradhan* and the *Sahakari Sabhapati* :

Provided also that for the purpose of reservation of offices in accordance with the roster as aforesaid, all offices available for reservation by rotation shall be arranged in the ascending order of assigned serial numbers and another set of consecutive serial numbers, commencing from the figure one, shall be given to them so that reservation may be made on matching such consecutive serial numbers with the identical serial numbers in the roster:

Provided also that the publication of the order in Form 1A or Form 1B may be made with respect to any one or more of the offices separately or with respect to all the offices jointly as may be decided by the District Magistrate and District *Panchayat* Election Officer:

Provided also that if, in any term of election, the number of offices of the *Upa-Pradhan* or the *Sahakari Sabhapati*, as determined for reservation under sub-clause (ii) of clause (b) of sub-rule (1), is not available from the roster valid for that term and if offices, not already reserved for that term, exist, the roster valid for the other term shall be applied for reservation for that term so as to match the number determined under sub-clause (ii) of clause (b) of sub-rule (1).

Explanation.— For the purpose of this rule,—

- (a) the population of the Scheduled Castes, the Scheduled Tribes and the Backward Classes or the total population in a *Gram* or Block shall be determined primarily on the basis of the last preceding census of which the relevant figures have been published ;
 - (b) when census figures are not available for a *Gram* or Block, the District Magistrate and District *Panchayat* Election Officer shall, subject to such order of Commissioner as may be made in this behalf, determine the population of the Scheduled Castes or the Scheduled Tribes or the Backward classes or the total population on the basis of any other authenticated record maintained by any office or any department of the State Government or, if no such record is available, on the basis of a local enquiry which may include house to house enumeration, caused by him for the purpose as aforesaid, after consulting, where necessary, any portion of the Assembly electoral roll or the electoral roll prepared by the Commission for the time being in force or any other authenticated record that may be of assistance.
- (3) For the purpose of reservation under clause (a) and clause (b) of sub-rule (1), preference shall be given to reservation of the offices of the *Pradhan* or the *Sabhapati*, as the case may be and after such reservation, offices of the *Upa-Pradhan* or the *Sahakari Sabhapati* shall not be reserved in the same *Gram* or the same Block, as the case may be:

Provided that if, in a *Gram* or Block, for any term of election, an office of *Upa-Pradhan* or *Sahakari Sabhapati*, as the case may be, to be reserved in accordance with the roster applicable where office of the *Pradhan* or the *Sabhapati* has already been reserved for the same term, such reservation of the office of the *Upa-Pradhan* or the *Sahakari Sabhapati* shall be deemed to have no effect and such reservation for that term

of election shall be carried forward to the next *Gram* or Block in the same roster or, if no *Gram* or Block is available in the same roster, in the *Gram* or Block occurring in sequential order in the roster valid for the next term of election :

Provided further that when reservation is made from the roster valid for the next term of election, such roster during the next term of election shall be deemed to commence after excluding the *Gram* or the Blocks, as the case may be, reserved for the preceding term but such excluded *Grams* or Blocks may be taken up again for reservation on exhausting the *Grams* or the Blocks available in the roster for that term.

- (4) Notwithstanding anything contained in these rules, if, for any term of election, an office of the *Pradhan* or the *Upa Pradhan* in a *Gram* or of the *Sabhapati* or the *Sahakari Sabhapati* in a Block, is required, in accordance with these rules, to be reserved for a specified category of persons when, in that *Gram* or the Block, as the case may be, no seat or constituency for members is reserved for such specified category of persons, such reservation for the office of the *Pradhan* or the *Upa Pradhan* in that *Gram* or the *Sabhapati* or the *Sahakari Sabhapati* in that Block shall be deemed to be inoperative and reservation for such specified category of persons shall be carried over to the next such *Gram* or Block occurring in the list of *Gram* or Blocks arranged in ascending order of the serial numbers assigned to each of them irrespective of whether any such serial number occurs in the roster for reservation for that term, where—

- (i) the office of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati* is not required to be reserved in accordance with these rules, for any category of persons, and
- (ii) one or more seats or constituencies for members are reserved for that specified category of persons for which the office of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati* is required to be reserved, and on such reservation for a specified category of persons being carried over from a *Gram* or Block, the office of the *Pradhan* or the *Upa-Pradhan*, the *Sabhapati* or the *Sahakari Sabhapati* in that *Gram* or that Block, as the case may be, shall remain eligible in that term of election for reservation, in accordance with these rules, for any other category of persons :

Provided that for the purpose of identifying an appropriate *Gram* or Block for carrying over the reservation, the list arranged in ascending order of the serial numbers assigned to the *Grams* or Blocks within the district, as the case may be, shall be taken up in consecutive order and on reaching the last number available, identification may again be taken up, if necessary, from the first serial number in the list.

Explanation : In this sub-rule, the expression “specified category of persons” shall mean and include Scheduled Castes, Scheduled Castes (Women), Scheduled Tribes and Scheduled Tribes (Women) and Backward Classes and Backward Classes (Women)

- (5) Notwithstanding anything contained in these rules, if in a district, for any term of election, the number of offices of the *Upa-Pradhan* or the *Sahakari Sabhapati* available for reservation after exclusion of the *Grams* or the Blocks, as the case may be, where offices of the *Pradhan* or the *Sabhapati* have been reserved for that term of election, is less than the number of offices determined under clause (a), or clause (b), of sub-rule (1), such number of offices of the *Upa-Pradhan* or the *Sahakari Sabhapati* as are available shall be reserved for that term of election and the number of offices determined under clause (a), or clause (b), as the case may be, of sub-rule (1) shall be deemed to be redetermined accordingly.

2B. Reservation of offices at *Zilla Parishad* and *Mahakuma Parishad* : (1) As soon as may be, but not later than six weeks before the date of poll appointed for any general election, the Commission shall, by an order in Form 1D, after previous publication of the draft of the order in Form 1C not later than nine weeks before the date of poll, determine, from among the total number of the offices of—

- (i) the *Sabhadhipati*, and
- (ii) the *Sahakari Sabhadhipati*.

of the *Zilla Parishad* and the *Mahakuma Parishad* in West Bengal, such number of offices reserved for—

- (a) the Scheduled Castes, the Scheduled Tribes and the Backward Classes as shall bear, as nearly as may be, the same proportion to the total number of the offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, in West Bengal, as the population of the Scheduled Castes or the Scheduled Tribes or the Backward Classes, as the case may be, in the Blocks under the jurisdiction of all *Zilla Parishads* and *Mahakuma Parishad* within West Bengal bears with the total population in the same areas:

Provided that for the purpose of determination of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, to be reserved under this clause for aforesaid three categories of persons, the provisions under sub-section (1) of section 143 of the Act shall be taken into consideration:

Provided further that the number of the Scheduled Castes or the Scheduled Tribes or the Backward Classes or the total population in the Blocks of West Bengal shall be determined on the basis of the last preceding census of which the relevant figures have been published:

Provided also that when census figures are not available, the Commissioner may, determine the proportion which the Scheduled Castes or the Scheduled Tribes or the Backward Classes population bears with the total population on the basis of any other authenticated record maintained by any office or organization or any department of the State Government:

Provided also that while determining the ceiling limit of fifty percent of the total number of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, only the whole integers shall be taken into consideration, ignoring any figure after the decimal point:

Provided also that when the number of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, determined for the Scheduled Castes and the Scheduled Tribes in terms of the prescribed manner reaches one-half of the total number of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, in West Bengal, there shall be no reservation for the Backward Classes persons:

Provided also that when the total number of reserved offices for the Scheduled Castes and the Scheduled Tribes persons, taken together, exceeds fifty per cent of the total number of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, the number of offices for each category shall be reduced in the proportion of the population of the Scheduled Castes and the Scheduled Tribes to the total population in West Bengal in order to match the figure of one-half of the total number of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, in West Bengal, in which case also there shall be no reservation for the Backward Classes persons:

Provided also that when the total number of reserved offices for the Scheduled Castes and the Scheduled Tribes and the Backward Classes persons in terms of provision of this clause exceeds one-half of the total number of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, in West Bengal, the number of offices reserved for the Scheduled Castes and the Scheduled Tribes shall remain unaltered and the number of offices

determined for the Backward Classes persons shall be suitably reduced to match the exact figure of one-half of the total number of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be:

Provided also that when the number of reserved offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, determined for the Scheduled Castes and the Scheduled Tribes persons taken together is less than one-half of the total number of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, in West Bengal, the available balance number of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, shall be reserved for the Backward Classes persons in conformity with the per centage of their population to the total population in West Bengal within the limit of fifty percent of the total number of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be in West Bengal;

Explanation I:— For the purpose of determination of number of offices to be reserved for the Scheduled Castes, the Scheduled Tribes and the Backward Classes under clause (a), all figures for calculation shall be taken up to the second place of decimal ignoring any digit after the second place of decimal altogether.

Explanation II:— For the final stage of calculation for arriving at the number of offices to be reserved, the digit in the second place of decimal, if any shall be totally ignored, and the whole number in the figure obtained shall be raised by one if the digit at the first place of decimal is not less than five while ignoring any digit below five at the first place of decimal;

(b) women as shall constitute—

- (i) as nearly as practicable one-half but not exceeding one-half of the offices reserved under clause (a), and
- (ii) as nearly as practicable one-half but not exceeding one-half of the total number of offices of the *Sabhadhipati* or the *Sahakari Sabhadhipati*, as the case may be, in West Bengal including the offices reserved under sub-clause (i) :

Explanation .— For the purpose of determination of number of offices to be reserved under clause (b), while calculating the one-half of the figure, only the whole integers shall be taken into account, ignoring any figure after the decimal point.

(2) The Commission, by an order in Form 1D, after previous publication of the draft of the order in Form 1C, shall declare from among the offices of the—

(i) *Sabhadhipati*, and

(ii) *Sahakari Sabhadhipati*

of the *Zilla Parishads* and the *Mahakuma Parishads* in West Bengal—

- (a) such offices to be reserved, by rotation, for the Scheduled Castes, the Scheduled Tribes and the Backward Classes as may be necessary to match the number determined under clause (a) of sub-rule (1):

Provided that—

- (i) the Commission shall assign consecutive serial numbers to all the *Zilla Parishads* and the *Mahakuma Parishad* in West Bengal following, as far as practicable, the sequence of the numbers assigned to the Legislative Assembly constituencies comprising parts of the districts ;

- (ii) for the purpose of reservation under clause (a) of sub-rule (1) subject to the provisions of item (vii), the *Zilla Parishad* or the *Mahakuma Parishad* having within its jurisdiction the Scheduled Castes or the Scheduled Tribes or the Backward Classes population constituting more than five per cent of the total population of the same area, shall be taken into consideration;
- (iii) on assignment of numbers referred to in item (i), the *Zilla Parishads* and the *Mahakuma Parishad* shall be arranged in ascending number of serials and thereafter reservation of the offices of the *Sabhadhipati* and *Sahakari Sabhadhipati* for two successive terms of elections will be made in accordance with the roster as specified in column (1) & column (2) for *Sabhadhipati* and column (3), column (4) for *Sahakari Sabhadhipati*, in the roster as specified in Schedule I following, *mutatis mutandis*, the manner laid down in items (iii), (iv) and (v) of the proviso to clause (a) of sub-rule (2) of rule 2A;
- (vi) if following the principle of rotation under these rules, any office is selected in any term of election simultaneously for reservation for the Scheduled Tribes, the Scheduled Castes and the Backward Classes persons or any two of such categories, such office shall be reserved in the preferential order of the Scheduled Tribes, the Scheduled Castes and the Backward Classes and reservation for the left out Scheduled Castes or Backward Classes or both, as the case may be, shall be made out of the offices coming next in order:

Provided that the office so reserved for the Scheduled Tribes or the Scheduled Castes on the aforesaid ground shall be eligible for consideration for reservation for the Scheduled Castes or the Backward Classes, as the case may be, in the next term of election.

- (vii) if the number of offices available for reservation by rotation falls short of the number determined under clause (a) of sub-rule (1), the Commission may, by order, include such other offices which were excluded earlier for reason of having the Scheduled Castes or the Scheduled Tribes or the Backward Classes population, as the case may be, in that district or *Mahakuma* of not more than five per cent of the total population of that district or *Mahakuma*, as the case may be, to reach the number of the offices required for reservation, and such inclusion shall commence from the *Zilla Parishad* or the *Mahakuma Parishad* comprising the area having higher proportion of the Scheduled Castes population or the Scheduled Tribes population or the Backward Classes population, as the case may be ;
- (b) Such offices to be reserved by rotation for women as may be necessary to match the number determined under sub-clause (i) and sub-clause (ii) of clause (b) of sub-rule (1):

Provided that such declaration of offices shall be made at first in respect of the offices determined under sub-clause (i) of clause (b) of sub-rule (1) and, then, in respect of the offices determined under sub-clause (ii) of clause (b) of sub-rule (1):

Provided further that the total number of offices reserved for the Scheduled Castes, the Scheduled Tribes and the Backward Classes shall be taken into account while determining the number of offices to be reserved for women among them:

Provided also that such declaration shall be made in accordance with the roster as specified in—

- (i) Schedule A for the offices of the *Sabhadhipati*, and
- (ii) Schedule B for the offices of the *Sahakari Sabhadhipati*:

Provided also that for the purpose of reservation of offices in accordance with the rosters as aforesaid, all offices available for reservation by rotation shall be arranged in the ascending order of numbers and another set of consecutive serial numbers, commencing from the figure one, shall be given to them so that reservation may be made on matching such consecutive serial numbers with the identical serial numbers in the roster.

- (3) For the purpose of reservation of the offices of the *Sahakari Sabhadhipati*, the provisions of sub-rules (3), (4) and (5) of rule 2A shall apply *mutatis mutandis*.
- (2) In the first proviso to clause (a) of sub-rule (7) of rule 3, after the words, "or the Scheduled Tribes (Women)", insert the words, "the Backward Classes or the Backward Classes (Women)."
- (3) For Schedule A, substitute the following Schedule:

"(SCHEDULE A)

(see rules 2A, 2B)

Roster for reservation of offices of the *Pradhan*, the *Sabhapati* and the *Sabhadhipati* for Women by rotation (For the Scheduled Castes, the Scheduled Tribes, the Backward Classes and the General Category)

Total no. of offices among which reservation shall be made	Offices to be reserved in 1st term of General Election	Offices to be reserved in 2nd term of General Election
(1)	(2)	(3)
1	1	—
2	1	2
3	1	2
4	1, 3	2, 4
5	1, 3	2, 4
6	1, 3, 5	2, 4, 6
7	1, 3, 5	2, 4, 6
8	1, 3, 5, 7	2, 4, 6, 8
9	1, 3, 5, 7	2, 4, 6, 8
10	1, 3, 5, 7, 9	2, 4, 6, 8, 10
11	1, 3, 5, 7, 9	2, 4, 6, 8, 10
12	1, 3, 5, 7, 9, 11	2, 4, 6, 8, 10, 12
13	1, 3, 5, 7, 9, 11	2, 4, 6, 8, 10, 12
14	1, 3, 5, 7, 9, 11, 13	2, 4, 6, 8, 10, 12, 14
15	1, 3, 5, 7, 9, 11, 13	2, 4, 6, 8, 10, 12, 14
16	1, 3, 5, 7, 9, 11, 13, 15	2, 4, 6, 8, 10, 12, 14, 16
17	1, 3, 5, 7, 9, 11, 13, 15	2, 4, 6, 8, 10, 12, 14, 16
18	1, 3, 5, 7, 9, 11, 13, 15, 17	2, 4, 6, 8, 10, 12, 14, 16, 18
19	1, 3, 5, 7, 9, 11, 13, 15, 17	2, 4, 6, 8, 10, 12, 14, 16, 18

Total no. of Offices among which reservation shall be made	Offices to be reserved in 1st term of General Election	Offices to be reserved in 2nd term of General Election
(1)	(2)	(3)
20	1, 3, 5, 7, 9, 11, 13, 15, 17, 19	2, 4, 6, 8, 10, 12, 14, 16, 18, 20
21	1, 3, 5, 7, 9, 11, 13, 15, 17, 19	2, 4, 6, 8, 10, 12, 14, 16, 18, 20
22	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22
23	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22
24	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24
25	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24
26	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26
27	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26
28	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28
29	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28
30	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30
31	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30
32	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32
33	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32
34	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31, 33	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32, 34
35	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31, 33	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32, 34
36	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31, 33, 35	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32, 34, 36
37	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31, 33, 35	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32, 34, 36
38	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31, 33, 35, 37	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32, 34, 36, 38
39	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31, 33, 35, 37	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32, 34, 36, 38
40	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31, 33, 35, 37, 39	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32, 34, 36, 38, 40
41	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31, 33, 35, 37, 39	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32, 34, 36, 38 & 40
42	1, 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31, 33, 35, 37, 39, 41	2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32, 34, 36, 38, 40, 42

*Serial number shown under column 2 and 3 indicate the position of seat in the Schedule drawn up in ascending order of assigned serial number of seats.

** In the case of higher number of total seats available for reservation, same procedure may be followed by the prescribed authority commencing from first seat in first term of election, and second seat in second term of election, and selecting every third seat in each occasion and the first and second seat as the occasion may arise.”;

(4). For Schedule B, *Substitute* the following Schedule.

“(SCHEDULE – B)

Roster for reservation of offices of the *Upa-Pradhan*, the *Sahakari Sabhapati* and *Sahakari Sabhadhipati* for women by rotation.

(For the Scheduled Castes, the Scheduled Tribes, Backward Classes and the General Category)

(see rules 2A, 2B)

Total no. of offices among which reservation shall be made	Offices to be reserved in 1st term of General Election	Offices to be reserved in 2nd term of General Election
(1)	(2)	(3)
1	—	1
2	2	1
3	2	1
4	2,4	3,1
5	2,4	3,5
6	2,4,6	3,5,1
7	2,4,6	3,5,7
8	2,4,6,8	3,5,7,1
9	2,4,6,8	3,5,7,9
10	2,4,6,8,10	3,5,7,9,1
11	2,4,6,8,10	3,5,7,9,11
12	2,4,6,8,10,12	3,5,7,9,11,1
13	2,4,6,8,10,12	3,5,7,9,11,13
14	2,4,6,8,10,12,14	3,5,7,9,11,13,1
15	2,4,6,8,10,12,14	3,5,7,9,11,13,15
16	2,4,6,8,10,12,14,16	3,5,7,9,11,13,15,1
17	2,4,6,8,10,12,14,16	3,5,7,9,11,13,15,17
18	2,4,6,8,10,12,14,16,18	3,5,7,9,11,13,15,17,1
19	2,4,6,8,10,12,14,16,18	3,5,7,9,11,13,15,17,19
20	2,4,6,8,10,12,14,16,18,20	3,5,7,9,11,13,15,17,19,1
21	2,4,6,8,10,12,14,16,18,20	3,5,7,9,11,13,15,17,19,21
22	2,4,6,8,10,12,14,16,18,20,22	3,5,7,9,11,13,15,17,19,21,1

Total no. of offices among which reservation shall be made	Offices to be reserved in 1st term of General Election	Offices to be reserved in 2nd term of General Election
(1)	(2)	(3)
23	2,4,6,8,10,12,14,16,18,20,22	3,5,7,9,11,13,15,17,19,21,23
24	2,4,6,8,10,12,14,16,18,20,22,24	3,5,7,9,11,13,15,17,19,21,23,1
25	2,4,6,8,10,12,14,16,18,20,22,24	3,5,7,9,11,13,15,17,19,21,23,25
26	2,4,6,8,10,12,14,16,18,20,22,24,26	3,5,7,9,11,13,15,17,19,21,23,25,1
27	2,4,6,8,10,12,14,16,18,20,22,24,26	3,5,7,9,11,13,15,17,19,21,23,25,27
28	2,4,6,8,10,12,14,16,18,20,22,24,26,28	3,5,7,9,11,13,15,17,19,21,23,25,27,1
29	2,4,6,8,10,12,14,16,18,20,22,24,26,28	3,5,7,9,11,13,15,17,19,21,23,25,27,29
30	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30	3,5,7,9,11,13,15,17,19,21,23,25,27,29,1
31	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31
32	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30,32	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31,1
33	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30,32	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31,33
34	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30,32,34	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31,33,1
35	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30,32,34	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31,33,35
36	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30,32,34,36	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31,33,35,1
37	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30,32,34,36	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31,33,35, 37
38	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30,32,34, 36,38	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31,33, 35,37,1
39	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30,32,34, 36,38	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31,33,35, 37,39
40	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30,32,34, 36,38,40	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31,33,35, 37,39,1
41	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30,32,34, 36,38,40	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31,33,35, 37,39,41
42	2,4,6,8,10,12,14,16,18,20,22,24,26,28,30,32,34, 36,38,40,42	3,5,7,9,11,13,15,17,19,21,23,25,27,29,31,33,35,3 7,39,41,1

*Serial numbers shown under columns 2 & 3 indicate the position of seats in the Schedule drawn up in ascending order of assigned serial number of seats.

**In the case of higher number of total seats available for reservation, same procedure may be followed by the prescribed authority commencing from second seat in first term of election and third seat in the second term of election, and selecting every third seat on each occasion and the first or the second seat as the occasion may arise.”;

(5) For Schedule I, *substitute* the following Schedule:

"SCHEDULE 1

Roster for reservation of offices of the *Pradhan*, the *Upa-Pradhan*, the *Sabhapati*, the *Sahakari Sabhapati*, the *Sabhadhipati* and the *Sahakari Sabhadhipati* for the Scheduled Castes, the Scheduled Tribes and the Backward Classes by rotation.

(See rules 2A, 2B)

Serial no. of offices of the <i>Pradhan</i> , the <i>Sabhapati</i> and the <i>Sabhadhipati</i> to be reserved		Serial no. of offices of the <i>Upa-Pradhan</i> , the <i>Sahakari Sabhapati</i> and the <i>Sahakari Sabhadhipati</i> to be reserved	
(A)		(B)	
For the 1st term of election	For the 2nd term of election	For the 1st term of election	For the 2nd term of election
(1)	(2)	(3)	(4)
1	18	16	37
7	24	22	43
13	30	28	49
19	36	34	5
25	42	40	11
31	48	46	17
37	4	2	23
43	10	8	29
49	16	14	35
5	22	20	41
11	28	26	47
17	34	32	3
23	40	38	9
29	46	44	15
35	2	50	21
41	8	6	27
47	14	12	33
3	20	18	39
9	26	24	45
15	32	30	1
21	38	36	7
27	44	42	13
33	50	48	19
39	6	4	25
45	12	10	31

*Serial numbers shown under column (1) to (4) shall be matched with the serial number of seats in each group of fifty or the part group consisting of less than fifty Grams or Block, as the case may be.

(6) In Form 1A, IB, IC & ID:—

- (i) For the words and figures, “the Scheduled Castes, the Scheduled Tribes and women members specified in the corresponding entries in columns (3a),(3b) and (3c) respectively” *substitute* the words and figures, “the Scheduled Castes, the Scheduled Tribes, the Backward Classes and Women members specified in the corresponding entries in columns (3a),(3b), (3c) and (3d) respectively.”
- (ii) For the words, “the Scheduled Castes or the Scheduled Tribes,” *insert* the words, “the Scheduled Castes or the Scheduled Tribes or the Backward classes.”
- (iii) In the schedule—
 - (a) In column (3c), for the word, “Women”, *substitute* the words, “Backward Classes”
 - (b) After column (3c), *insert* a new column (3d) with the heading “Women”.
 - (c) In column (4), for the words, “the Scheduled Castes or the Scheduled Tribes, *substitute* the words, “the Scheduled Castes or the Scheduled Tribes or the Backward Classes”

By order of the Governor,

SAURABH KUMAR DAS

Principal Secretary to the Government of West Bengal.